FOR PARENTS AND STUDENTS

After a paddling: what a family can do

What to do in the first forty-eight hours after a child is paddled at school, what your state's statute actually says, the five routes that work, the deadlines, and when a lawsuit is realistic. General information, not legal advice.

Version 2026-10-29 · Statutes and deadlines read at each state's own statute site on 2026-10-29 · The web version, with live links, is at earthpilot.org/kids/kit/after-a-paddling/ · Free to use and share (CC BY 4.0)

This is general information, not legal advice. Laws change and every case is different. Before you act on anything here, talk to a lawyer licensed in your state. The section on finding one is below.

Your child came home and told you an adult at school hit them with a board. Or the school called to tell you. You are angry, you may be frightened, and the people who did it are the people your child has to face tomorrow morning.

This guide is for parents, and for students old enough to read it, in the seventeen states where school paddling is still legal. It covers what to do in the first two days, what the law in your state actually says, the five routes that have a real chance of changing something, and what each one costs in money, time and odds. It is honest about the hard part. In most of these states a paddling done the way the school board's policy says has been held lawful, even when it left bruises. The routes that work are the ones that test whether the policy was followed, protect a child with a disability, put the record in public hands, and change the policy so it does not happen to the next child.

The first forty-eight hours

Do these in order. Each one creates a record that cannot be created later.

1. **Photograph the injuries, with a date.** Take the photos the same day, in good light, with something in the frame that fixes the date: that day's mail, a phone screen showing the date, a dated handwritten note. Take them again the next morning and the morning after. Bruises darken and spread over two or three days, and the second-day photos are often the ones that matter. Keep the originals on the phone and do not edit them.

2. **Take your child to a doctor the same day, and get the record.** Urgent care, the pediatrician or the emergency room. Tell the clinician plainly what happened and ask that the record describe each mark, its size and its location, and what the child said caused it. Ask for a copy of the visit record before you leave, or download it from the patient portal that day. Doctors and nurses are required by law to report suspected child abuse, so a report to the state child protection agency may follow; that is not something you need to prevent. If the bruising is heavy, ask for a referral to a child abuse pediatrician. Their written opinion carries weight that a parent's photographs do not.
3. **Write down your child's account, once, in their own words.** The same evening. Who struck them, where, with what, how many times, what was said before and after, who else was in the room, and whether anyone asked for their side first. Write the names and titles of the adult who did it and of any witness, as your child knows them. Do not correct or lead, and do not interview your child again and again; repeated questioning changes the account and wears the child down. Date and sign the page.
4. **Ask the school, in writing, for the records.** Email the principal and copy the superintendent that day or the next morning. Ask for five things: the incident report or corporal punishment record form for your child; the board policy and the student handbook section on corporal punishment; any consent, permission or refusal form on file for your child; the witness log, or the name and title of the witness; and the name of the person who administered it. Ask for electronic copies and say that this is also a request under your state's public records law. Keep every reply. A school that cannot produce a consent form in a state that requires one, or a witness record where the statute requires a witness, has just told you something important.
5. **Do not sign anything.** Not a consent form offered after the fact, not an incident acknowledgment, not a form saying your child's behavior was explained to you, not a release. Do not agree to a meeting with no record. If you meet, bring another adult, take notes, and follow up with an email that says what was said.
6. **Withdraw consent and prohibit it, in writing.** In the same email, state that you do not consent to corporal punishment of your child, that you revoke any consent the school believes it has, and that you want this on file for the school year. In Texas the statute recognizes exactly this signed statement. In Missouri, Louisiana and Florida the school needed your permission first, and its absence is your strongest fact. Everywhere else, board policy almost always honors a parent's written refusal, and a school that paddles a child over a written refusal has stepped outside its own rules.

Two things not to do yet. Do not post the photographs publicly; a lawyer may want them first, and a public post will be used to say you are after attention. And do not take the school's first account as the last word. The incident report is written by the people who did it.

Your child's rights in your state

Seventeen states still permit corporal punishment by statute. In two of them, Kentucky and North Carolina, every district has stopped by policy, so a paddling there is already outside the rules. The table is built from each state's statute, read on the state's own website on the date at the bottom of this page. "Consent rule" is what the statute says, not what the district's policy says. The policy can be stricter, which is why you ask for it.

STATE AND STATUTE	CONSENT RULE IN THE STATUTE	LIMITS IN THE STATUTE	IMMUNITY, IN THE STATUTE'S OWN WORDS
Alabama Ala. Code § 16-28A-1	None in the statute; the local board's policy decides.	No conditions in the statute; the board policy sets them	"So long as teachers follow approved policy in the exercise of their responsibility to maintain discipline in their classroom, such teacher shall be immune from civil or criminal liability." Ala. Code § 16-28A-1
Arkansas A.C.A. § 6-18-505	None in the statute; the district's written discipline policy must authorize it.	No corporal punishment on a child who is intellectually disabled, non-ambulatory, non-verbal, or autistic (Act 557 of 2019, SB 381) Only for cause, reasonable, after warning, by a teacher or administrator, in the presence of an administrator or designee (§ 6-18-503(b)); district must authorize it in its written discipline policy	"teachers and administrators in a school district that authorizes use of corporal punishment in the school district's written student discipline policy shall be immune from any civil liability for administering corporal punishment to students, provided only that the corporal punishment is administered in substantial compliance with the school district's written student discipline policy. [...] A teacher or administrator [...] is not immune from civil liability under subdivision (a)(1) of this section if the teacher or administrator uses corporal punishment on a child who is intellectually disabled, nonambulatory, nonverbal, or autistic." Ark. Code § 6-17-112(a)
Arizona A.R.S. § 15-843	None in the statute; the board sets the procedures.	No conditions in the statute; the board policy sets them	No immunity clause: the words immune and liable do not appear in the school discipline statute.
Florida Fla. Stat. § 1003.32	Opt-in. A board that allows it must require parental consent, for the year or before each paddling (§ 1002.20(4)(c), since July 1, 2025).	Since July 1, 2025 a board that authorizes it must require parental consent, for the school year or before each instance (the statute says 'consent,' not 'written consent'); the board must review the policy at a public meeting every three years or the authorization expires; charters must comply (§ 1002.33(16)(b)17) Principal approval in principle and principal guidelines; another adult present and informed of the reason; written explanation to the parent on request (§ 1003.32(1)(k)) No disability ban	"An officer, employee, or agent of the state or of any of its subdivisions may not be held personally liable in tort or named as a party defendant in any action for any injury or damage suffered as a result of any act, event, or omission of action in the scope of her or his employment or function, unless such officer, employee, or agent acted in bad faith or with malicious purpose or in a manner exhibiting wanton and willful disregard of human rights, safety, or property." Fla. Stat. § 768.28(9)(a) (general employee immunity; the school statutes have no corporal punishment immunity clause)

STATE AND STATUTE	CONSENT RULE IN THE STATUTE	LIMITS IN THE STATUTE	IMMUNITY, IN THE STATUTE'S OWN WORDS
Georgia O.C.G.A. §§ 20-2-730 to 20-2-732	Opt-out by physician only: a statement from a medical doctor licensed in Georgia, filed on the day of enrollment (§ 20-2-731(5)).	Not excessive or unduly severe; not a first-line punishment unless the pupil was warned; administered in the presence of a principal, assistant principal or designee informed beforehand in the pupil's presence; written explanation to the parent on request No corporal punishment on a child whose parent filed, on the day of enrollment, a Georgia-licensed physician's statement that it would be detrimental to the child's mental or emotional stability (§ 20-2-731)	"No principal or teacher who shall administer corporal punishment to a pupil or pupils under his care and supervision in conformity with the policies and regulations of the area, county, or independent board of education employing him and in accordance also with this subpart shall be held accountable or liable in any criminal or civil action based upon the administering of corporal punishment where the corporal punishment is administered in good faith and is not excessive or unduly severe." O.C.G.A. § 20-2-732
Indiana No corporal punishment statute; IC 20-33-8-8	None in the statute, which does not mention corporal punishment.	No conditions in the statute; the board policy sets them	"have qualified immunity with respect to a disciplinary action taken to promote student conduct under subdivision (2) if the action is taken in good faith and is reasonable." Ind. Code § 20-33-8-8(b)(3)
Kansas No school corporal punishment statute; only K.S.A. 21-5602	None. Kansas has no school corporal punishment statute.	No conditions in the statute; the board policy sets them	No school statute and no immunity clause. The only statute on the subject is the criminal child abuse law, which punishes knowingly inflicting cruel and inhuman corporal punishment.
Kentucky Legal, but every district has stopped by policy KRS 503.110	Opt-in by regulation: annual written consent plus verbal consent before each instance (704 KAR 7:170 § 3). Every district has prohibited it.	Under 704 KAR 7:170 (effective Aug 30, 2022) a district that permits it must obtain annual written and per-instance verbal parental consent, use a same-gender certified witness, no instruments, provide counseling by the next school day, and may not use it on students with IEPs or 504 plans, homeless or foster youth	No civil immunity clause. The criminal code makes a teacher's force justifiable when the teacher believes it necessary to maintain reasonable discipline in a school, class, or other group and it is not designed to cause serious injury.

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Louisiana La. R.S. 17:416.1	Opt-in: written consent each school year on the state Department of Education form (R.S. 17:416.1(B)(1)).	Prohibited in any public school unless the parent gives written consent for that school year on a form created by the state Department of Education (Act 268 of 2023, HB 242, effective August 1, 2023) No corporal punishment on a student with an exceptionality (other than gifted) or an Individual Accommodation Plan (Act 266 of 2017) Taping a student's mouth or otherwise restricting the airway is prohibited regardless of consent (Act 780 of 2024, HB 107) The same rules apply to any nonpublic school that receives state funds (R.S. 17:416.22)	"Should any teacher, principal, or administrator in the public school system be sued for damages by any student, the parent of any student or other persons qualified to bring suit on behalf of such student based upon the act or omission of such teacher, principal, or administrator in the directing of and disciplining of school children under their care and supervision, it shall be the responsibility of the school board employing such teacher, principal, or administrator to provide such defendant with a legal defense to such suit including reasonable attorney fees, investigatory costs, and other related expenses. Should any such teacher, principal, or administrator be cast in judgment for damages in such suit, it shall be the obligation of the school board employing such defendant to indemnify him fully against such judgment [...]" La. R.S. 17:416.1(C)
Missouri RSMo 160.261	Opt-in: the parent is notified and gives written permission (RSMo 160.261.1).	No pupil may be subject to corporal punishment without the parent being notified and providing written permission (opt-in, effective August 28, 2022) Spanking must be administered by certificated personnel in the presence of a district-employee witness to be exempt from the abuse definition (160.261.10) Each board's written discipline policy must state its determination on corporal punishment	"Spanking, when administered by certificated personnel and in the presence of a witness who is an employee of the school district, or the use of reasonable force to protect persons or property, when administered by personnel of a school district in a reasonable manner in accordance with the local board of education's written policy of discipline, is not abuse within the meaning of chapter 210." RSMo 160.261.10; see also 160.261.8 (no civil liability when acting in conformity with board policy)
Mississippi Miss. Code Ann. § 37-11-57	None in the statute.	No corporal punishment on any student with a disability (IEP or 504 plan), with no immunity for violations (effective July 1, 2019). No consent, witness, instrument or record requirements in statute	"No public school teacher, assistant teacher, principal or assistant principal so acting shall be held liable in a suit for civil damages alleged to have been suffered by a student as a result of the administration of corporal punishment, or the taking of action to maintain control and discipline of a student, unless the court determines that the teacher, assistant teacher, principal or assistant principal acted in bad faith or with malicious purpose or in a manner exhibiting a wanton and willful disregard of human rights or safety. [...] No school personnel shall be granted immunity from liability under subsection (2) of this section for the use of corporal punishment on a student with a disability." Miss. Code § 37-11-57(2), (3)

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North Carolina Legal, but every district has stopped by policy G.S. 115C-390.4	Opt-out: a written statement on a form offered at enrollment (G.S. 115C-390.4(b)(6)). Every district has prohibited it.	Local board decides; witness required; written parental notice; records; annual report to State Board by race, sex and disability; written parental opt-out offered at enrollment (an opted-out student may be suspended for offenses that otherwise would not require it)	No immunity clause. The statute defines excessive force as force that results in injury to the child that requires medical attention beyond simple first aid, and a separate statute lets a judge award the teacher's attorney fee against a frivolous suit (G.S. 6-21.4).
Oklahoma 70 O.S. § 24-100.4	None in the statute.	No corporal punishment on any student identified with a disability under IDEA (SB 364, Laws 2025 ch. 99; law without the governor's signature May 8, 2025; effective about August 28, 2025 by constitutional default since the emergency clause failed) 70 O.S. § 24-100.4(D): the State Board may not proscribe corporal punishment except for IEP students, so Kentucky's regulatory route is closed by statute in Oklahoma No statewide consent, witness, instrument or record rules	No immunity clause in the school statutes. The child abuse act does not prohibit ordinary force as a means of discipline, including but not limited to spanking, switching or paddling (21 O.S. § 844), and the Governmental Tort Claims Act exempts the use of necessary and reasonable force by a school district employee to control and discipline a student (51 O.S. § 155(35)).
South Carolina S.C. Code § 59-63-260	None in the statute.	No conditions in the statute; the board policy sets them	No immunity clause; the statute is one sentence. The Tort Claims Act bars liability for the supervision or control of a student except when the responsibility or duty is exercised in a grossly negligent manner (§ 15-78-60(25)).
Tennessee T.C.A. § 49-6-4103	None for most students. For a student with a disability, prohibited unless district policy allows it and the parent gives written permission stating the type and circumstances (§ 49-6-4103(b)).	Before corporal punishment the educator must document having addressed the behavior, provided consequences, consulted the parent, and considered whether to evaluate the student for a disability (Public Chapter 275, effective April 28, 2023) No corporal punishment on a student with a disability unless district policy permits it and the parent gives written permission specifying type and circumstances, with notice each time (HB 2330, 2018) Each local board adopts rules to implement and control any form of corporal punishment (§ 49-6-4104)	No immunity clause in the corporal punishment sections. Before any paddling the teacher or principal must document in the student's record that they addressed the behavior, gave consequences, consulted the parent and considered a disability evaluation (§ 49-6-4103(a)(2)).

STATE AND STATUTE	CONSENT RULE IN THE STATUTE	LIMITS IN THE STATUTE	IMMUNITY, IN THE STATUTE'S OWN WORDS
Texas Tex. Educ. Code § 37.0011	Opt-out: a signed written statement to the board each school year (§ 37.0011(c)).	If the student code of conduct permits it, a district educator may use corporal punishment unless the parent has provided a signed written statement prohibiting it, renewed each school year (opt-out) Tex. Educ. Code § 22.0512 bars districts from disciplining an employee for force justified under Penal Code § 9.62	"A professional employee of a school district may not be subject to disciplinary proceedings for the employee's use of physical force against a student to the extent justified under Section 9.62, Penal Code. [...] This section does not prohibit a school district from: (1) enforcing a policy relating to corporal punishment; or (2) [...] bringing a disciplinary proceeding against a professional employee of the district who violates the district policy relating to corporal punishment." Tex. Educ. Code § 22.0512; Penal Code § 9.62 (force is justified when the educator reasonably believes it necessary to maintain discipline in a group)
Wyoming W.S. § 21-4-308	None in the statute.	No conditions in the statute; the board policy sets them	"Teachers, principals and superintendents in each district shall be immune from civil and criminal liability in the exercise of reasonable corporal discipline of a student as authorized by board policy." W.S. § 21-4-308(b)

What the right column means. Nearly every one of these states protects the adult who paddles a child as long as the paddling stays inside the board's policy: by an explicit immunity clause, by declaring it "not abuse", by barring the district from disciplining the employee, or by treating reasonable discipline as justified. The protection runs out at the edge of the policy. A paddling with no witness where the statute requires one, without the warning the statute requires, on a student with a disability in a state that forbids it, without a consent form in a state that requires one, or with force far beyond what the policy allows, is where every route below gets stronger.

The five routes that work

Each route is described the same way: who it is for, what it costs, how long it takes, and the honest odds. None of them is a lottery ticket. The two most likely to change something are the first and the third.

1. The public records request

Who it is for. Every family, in every state, on day one.

What it costs. Nothing to send. Copy fees are usually small, and the template asks the district to call you before charging more than an amount you set.

How long it takes. Each state's records law sets a response time, from a few business days to a few weeks. The district must cite a specific exemption for anything it withholds.

What you get. The policy the paddling had to follow. The form the school was supposed to fill out. The consent or refusal form on file, or the admission that there is none. How many times the district paddled children this year and last, by school. Whether what it told the federal government in its civil

rights data matches. This is the evidence for every other route, and the district has to produce it to you, not to a lawyer.

How. Use the records request template, cite your state's records law (the template tells you which), and send it to the records officer named on the district website. Arkansas, Tennessee and Alabama answer records requests only from their own residents; as a resident, you qualify. If you are helping a family from outside the state, the FOIA Request Exchange lends a resident's standing.

Honest odds. High. Districts answer records requests because the law makes them. The request does not by itself get your child anything. It is the step that turns a story into a file.

2. A federal civil rights complaint

Who it is for. A child with a disability, with an Individualized Education Program or a Section 504 plan or who should have been evaluated for one. Or a family who can point to a pattern: the paddle falls on Black children, or on boys, in a way the numbers show. A paddling by itself is not a federal civil rights violation. The complaint has to be about discrimination, or about retaliation for complaining.

What it costs. Nothing. No lawyer is needed. Anyone may file, including on behalf of a child.

The deadline. One hundred eighty days from the last act of discrimination. The Office for Civil Rights can grant a waiver for good cause. Do not count on one.

How. File online through the Office for Civil Rights complaint portal, or with the fillable complaint form, or by a signed letter to OCR@ed.gov that names the district, describes what happened and when, and says why you believe it was discrimination. The agency's own instructions list what a letter must contain. For a child under eighteen a parent or guardian signs the consent form; if the office asks for it and does not receive it within twenty calendar days, the complaint is closed. You do not have to use the district's grievance process first. If you do, you then have sixty days after it ends to file.

What happens next. The office acknowledges the complaint and decides whether to open it. If it does, it investigates as a neutral fact finder, or offers a facilitated resolution. The usual outcome of a successful complaint is a written resolution agreement in which the district changes what it does and the office monitors it. The office does not award money to your child and does not represent you. It does not promise a timeline; plan on months.

A second route for a child with an IEP. The state education agency must take a signed written complaint that the district violated the Individuals with Disabilities Education Act, if the violation was within the past year, and must resolve it within sixty days. In Arkansas, Louisiana, Mississippi, Oklahoma and Tennessee the statute itself forbids or restricts paddling a student with a disability, so the complaint can cite state law too.

Honest odds. For a child with a disability in a state that forbids it, good: the facts are usually not in dispute and the fix is a policy the district can sign. For a pattern complaint, it depends on the

numbers, which the records request and the federal civil rights data for your district on the map give you.

3. A complaint to the district and the state education agency

Who it is for. Every family. This is also the route that most often ends in a changed policy.

What it costs. Nothing.

How. Write to the superintendent and the board, not only the principal. State what happened, attach the photographs and the medical record, name the policy provisions you believe were not followed, and ask for three things in writing by a date you set: an investigation, a copy of the findings, and an assurance that your child will not be paddled again. Ask to speak at the next board meeting. Public comment is yours by right, the meeting is recorded, and three minutes with photographs in hand is worth more than a dozen phone calls. Then write to the state education agency. It supervises districts' compliance with state law, and in a state with a consent, witness, documentation or disability rule in the statute, a violation is squarely its business. The table in the lawyer section gives each agency's complaint page.

How long it takes. Weeks for a district response, if your letter sets the date. A board policy change takes two readings, usually two months.

Honest odds. The district will probably defend its employee. But a documented complaint, a public comment and a records file have moved boards. The project's district record counts more than eleven hundred school boards in these seventeen states whose written policy prohibits corporal punishment, and every one of those policies was a vote by a board that once allowed it.

4. A criminal complaint

Who it is for. A child with injuries beyond temporary redness, a paddling with force or in a manner outside the policy, an adult who struck in anger, a paddling with no witness, or a child the statute protects.

What it costs. Nothing. Report to the local police or sheriff, or go directly to the district attorney's office. The doctor's report may already have brought in the state child protection agency.

How long it takes. An investigation may take weeks; a charging decision, months.

Honest odds. Low for a paddling that followed the policy. Most of these states' laws treat reasonable school discipline as justified, and some grant criminal immunity outright, so a prosecutor reads the statute and the policy before the photographs. In Overton, Texas in 2023, the charge against a principal was dismissed although a child abuse physician called the bruising consistent with abuse, because the policy was followed and the mother was present and consenting. Charges do happen when the facts are worse: in Jackson County, Tennessee, a teacher and an assistant principal were indicted in November 2023 after two paddlings injured a student. A report also creates a dated official record and puts a second set of eyes on the school, which has value even when no charge follows.

5. A civil lawsuit

Who it is for. A family with a serious injury, clear evidence that the policy or the statute was not followed, or a child with a disability in a state that protects them, and a lawyer who has read the records and said yes.

State court first. The claims are assault, battery and negligence against the employee, and negligence against the district. Three walls stand in the way. First, the immunity clauses in the table above. Second, governmental immunity: in most of these states a school district can be sued only as far as its tort claims act allows, often only up to its insurance, with caps on damages. Third, the notice-of-claim rules in the next section, which can close the courthouse within months. A lawyer who has sued a school district before knows where the doors are.

Federal court second, and only in some states. Seven federal appeals circuits allow a suit under the federal civil rights statute, Section 1983, when a paddling "shocks the conscience". Those courts describe the bar as malice or sadism and injury far beyond anything discipline could justify, not an unwise excess of zeal. Among the paddling states, that rule covers Alabama, Georgia and Florida (Eleventh Circuit), Arkansas and Missouri (Eighth), Kentucky and Tennessee (Sixth), Oklahoma, Kansas and Wyoming (Tenth), and North Carolina and South Carolina (Fourth). Indiana (Seventh Circuit) and Arizona (Ninth) analyze excessive school force as an unreasonable seizure under the Fourth Amendment instead; the test is different but the bar for an ordinary paddling is still high. The Fifth Circuit, which covers Texas, Louisiana and Mississippi, holds that there is no federal claim at all for school corporal punishment where the state offers a tort or criminal remedy, and the Supreme Court has declined to review that rule repeatedly, most recently in January 2024. In those three states a federal suit over a paddling will be dismissed. Do not pay anyone to file one.

What it costs. Lawyers take strong injury cases on contingency, typically a third or more of any recovery plus costs. Weak cases are not taken, which is itself information worth having. In North Carolina a suit the court finds frivolous can cost you the district's attorney fees; see below.

How long it takes. One to three years to a settlement or a trial.

Honest odds. For a policy-compliant paddling, poor, in every state. For a paddling outside the policy with documented injury, or on a protected child, real. This project found no published settlement or verdict for a school paddling in the United States between 2022 and 2026. That does not mean none exist. It means there is no headline number to expect.

The deadlines

Two clocks run. The limitation period is the time to file suit. The notice-of-claim rule, where a state has one, is shorter: a written notice to the district within months, without which the suit is barred no matter how strong. A child's age pauses some clocks and not others, and in several states the notice deadline is not paused at all. The citations link to each state's own statute site. Read them with a lawyer, early; the shortest clock is the one that matters.

STATE	NOTICE OF CLAIM BEFORE SUING A DISTRICT	TIME LIMIT TO SUE	DOES THE CHILD'S AGE PAUSE THE CLOCK?
Alabama	No statute names a school board. The six-month tort claim rule is for municipalities only. Alabama's constitution says the State may never be made a defendant in any court (Art. I, § 14); ask a lawyer whether a board of education shares that immunity. Ala. Code § 11-47-23	Two years for any injury to the person. Ala. Code § 6-2-38(l)	Yes. A child under nineteen has until two years after turning nineteen. Ala. Code § 6-2-8(a)
Arkansas	None in the immunity statute. School districts are immune from suit for damages except to the extent they carry liability insurance, and no tort action lies against the district for its employees' acts; the claim is against the insurance. Ark. Code § 21-9-301	Three years is the period in § 16-56-105; the specific item covering injury to the person could not be read on the official site, so confirm it with a lawyer. Ark. Code § 16-56-105	Yes. A person under twenty-one when the claim accrues may sue within three years after reaching full age. Ark. Code § 16-56-116(a)
Arizona	Yes. A written claim stating the facts and a settlement amount must be filed with the district within one hundred eighty days of when you knew of the injury, or it is barred. The claim is deemed denied after sixty days. A.R.S. § 12-821.01	One year for any action against a public entity or employee; two years for personal injury generally. A.R.S. §§ 12-821, 12-542	Partly. A minor may file the claim within one hundred eighty days after turning eighteen; the general tolling rule is separate. A.R.S. §§ 12-821.01(D), 12-502
Florida	Yes. A written claim to the agency and to the Department of Financial Services within three years, and a denial, before suit. The statute does not name school boards; a lawyer must confirm how it applies to a district. Fla. Stat. § 768.28(6)	Four years for a claim under the sovereign immunity statute; generally two years for negligence and four for battery. Fla. Stat. §§ 768.28(14), 95.11	Rarely. Minority pauses the clock only while the child has no parent or guardian able to sue, and never beyond seven years. Nothing in § 768.28 pauses the claim deadline. Fla. Stat. § 95.051(1)(i)
Georgia	None found. The six-month municipal notice and the twelve-month county and state rules do not name school districts, and the state Tort Claims Act excludes them. Separately, a teacher who paddles in good faith under board policy is not liable in a civil or criminal action. O.C.G.A. §§ 36-33-5, 50-21-22(5), 20-2-732	Two years for injuries to the person. O.C.G.A. § 9-3-33	Yes. A child has the same two years after turning eighteen. O.C.G.A. § 9-3-90(b)
Indiana	Yes. Written notice to the school board (and the state political subdivision risk management commission, where it applies) within one hundred eighty days of the loss, or the claim is barred; suit only after denial. A separate pre-suit notice applies to suits against public schools. Ind. Code §§ 34-13-3-8, 34-13-3-13, 34-13-3.5	Two years for injury to the person. Ind. Code § 34-11-2-4(a)	For the suit, yes: two years after the disability ends. For the notice, only an incapacitated person gets one hundred eighty days after the incapacity ends; ask a lawyer whether a child qualifies. Ind. Code §§ 34-11-6-1, 34-13-3-9
Kansas	Yes. Written notice to the clerk or the school board before any suit; no suit until the claim is denied or one hundred twenty days pass. The notice has no deadline of its own, but the suit must still meet the limitation period, with at least ninety days after denial. K.S.A. 12-105b(d), 12-105a	Two years. K.S.A. 60-513(a)(4)	Yes for the suit: a child may sue within one year after turning eighteen, but never more than eight years after the act. The notice statute says nothing about minors. K.S.A. 60-515(a)

STATE	NOTICE OF CLAIM BEFORE SUING A DISTRICT	TIME LIMIT TO SUE	DOES THE CHILD'S AGE PAUSE THE CLOCK?
Kentucky	None for a local school board. The Board of Claims rules apply only to the Commonwealth and its agencies. KRS 49.070(2)	One year for injury to the person. KRS 413.140(1)(a)	Yes. A child has the same one year after the disability is removed. KRS 413.170(1)
Louisiana	None. The Governmental Claims Act requires no pre-suit notice, and a school board is a political subdivision under it. Suit must be in a Louisiana state court, and damages for one person are capped at five hundred thousand dollars. La. R.S. 13:5102(B)(1), 13:5106	Two years for injuries on or after July 1, 2024; one year for earlier injuries. La. Civ. Code art. 3493.1	No. Prescription runs against minors. The suspension between parents and children during minority concerns a child's claims against the parents, not a school. La. Civ. Code arts. 3468, 3469
Missouri	None for school districts. Sovereign immunity is waived only for motor vehicles and dangerous property conditions, and only to the extent of insurance. RSMo 537.600, 537.610	Two years for assault and battery; five years for other injury to the person. RSMo 516.140, 516.120(4)	Yes. A person under twenty-one when the claim accrues has the full period after the disability is removed. RSMo 516.170
Mississippi	Yes. A notice of claim to the district's chief executive officer at least ninety days before suit; suit within one year of the incident, with the notice pausing the clock ninety-five days. Missing the window is an absolute bar. Read at Justia; the state's official code site could not be opened. Miss. Code § 11-46-11	One year under the Tort Claims Act; three years generally. Miss. Code §§ 11-46-11(3), 15-1-49	Yes. A child may bring the action within the time allowed after the disability is removed. The statute does not say whether the ninety-day notice is also deferred. Miss. Code § 11-46-11(4)
North Carolina	None for ordinary tort claims against a local board; the Industrial Commission route covers school bus claims only. The board's immunity is waived only to the extent of its liability insurance. G.S. 115C-42, 143-300.1	Three years. G.S. 1-52(5), (16)	Yes. A child has the full three years after turning eighteen. G.S. 1-17(a)
Oklahoma	Yes. A written claim filed with the clerk of the school board within one year of the loss, or it is forever barred; suit within one hundred eighty days after the claim is denied, or deemed denied at ninety days. The Act also exempts the use of necessary and reasonable force by a school employee to control and discipline a student. 51 O.S. §§ 156, 157, 155(35)	Under the Governmental Tort Claims Act, the one-year claim and then one hundred eighty days. Generally two years for injury, one year for assault and battery. 51 O.S. §§ 156, 157; 12 O.S. § 95(A)	Not for the claim. The Act pauses the notice deadline only for up to ninety days of incapacity from the injury. The general rule giving a child one year after the disability ends does not mention the Act. 51 O.S. § 156(E); 12 O.S. § 96
South Carolina	Optional. A verified claim may be filed with the district within one year; it is not required, but filing it extends the time to sue from two years to three. S.C. Code § 15-78-80	Two years under the Tort Claims Act, three if a verified claim was filed; three years generally. S.C. Code §§ 15-78-110, 15-3-530(5)	Yes, and the statute names the Tort Claims Act. The years under eighteen do not count, but the suit must be filed within one year after the child turns eighteen. S.C. Code § 15-3-40

STATE	NOTICE OF CLAIM BEFORE SUING A DISTRICT	TIME LIMIT TO SUE	DOES THE CHILD'S AGE PAUSE THE CLOCK?
Tennessee	None. The Governmental Tort Liability Act's former procedural notice section (§ 29-20-302) is repealed. If a claim is denied, suit is in circuit court, only where the Act removes immunity. T.C.A. §§ 29-20-305(a), 29-20-302 (repealed)	Twelve months under the Governmental Tort Liability Act; one year for injuries to the person generally, two years if criminal charges are brought over the injury. T.C.A. §§ 29-20-305(b), 28-3-104(a)	Yes for the general limitation period: a person under eighteen may sue after legal rights are restored, within the limitation period, up to three years. The statute does not say whether this reaches the Act's twelve-month period; ask a lawyer. T.C.A. § 28-1-106(a)
Texas	Yes. The district is entitled to written notice within six months of the incident, describing the injury, the time and place, and the incident; not required if the district has actual notice of the injury. To sue a professional employee personally: written notice ninety days before suit and exhaustion of the district's grievance process. The Tort Claims Act does not reach school districts except for motor vehicles, or any intentional tort, including disciplinary action by school authorities. Civ. Prac. & Rem. Code §§ 101.101, 101.051, 101.057; Educ. Code §§ 22.0513, 22.0514	Two years for personal injury. Civ. Prac. & Rem. Code § 16.003(a)	Yes for the suit: time under eighteen is not counted. The six-month notice statute says nothing about minors. Civ. Prac. & Rem. Code § 16.001
Wyoming	Yes. An itemized written claim, signed under oath, filed at the district's business office within two years of the act; suit within one year after the claim is filed. Governmental entities and employees are immune from any tort except the listed waivers. W.S. §§ 1-39-113, 1-39-114, 1-39-104	One year after the claim is filed. Generally four years for injury to rights and one year for assault or battery. W.S. §§ 1-39-114, 1-3-105	Only for the youngest. A child seven or younger has until the eighth birthday or two years after the act, whichever is longer. The general rule giving a minor three years after the disability ends does not mention the Act. W.S. §§ 1-39-114, 1-3-114

The fee-shifting risk in North Carolina

North Carolina is the one state with a statute aimed at families who sue over a paddling. G.S. 6-21.4 says, in full:

> In any civil action brought against a public school principal or teacher as defined in G.S. 115C-390 arising or resulting from the use of corporal punishment, upon a determination that the principal or teacher has prevailed and that the plaintiff's action was frivolous or without substantial merit, the presiding judge may, in his discretion, allow a reasonable attorney fee to the duly licensed attorney representing the principal or teacher. The attorney's fee shall be taxed as part of the court costs.

Read it carefully before fearing it. The fee is discretionary, and it requires two findings: the educator won, and the suit was frivolous or without substantial merit. A suit that loses on the facts is not

frivolous. But in North Carolina every district has already prohibited corporal punishment by policy, so a paddling there is outside the rules from the start, and a lawyer will want to see the records before filing anything, which is the order this guide recommends everywhere.

How to find a lawyer

Start with the three free doors. The state bar's lawyer referral service connects you to a lawyer for a short first consultation at a set fee or none. The state's protection and advocacy organization represents children with disabilities at no charge and knows the school districts well. Legal aid takes families who qualify by income. Law school clinics in education law or children's rights take a few cases a year. When you call, ask one question first: have you sued a school district before? Then ask about the notice-of-claim deadline before anything else, and bring the file from the first forty-eight hours.

STATE	LAWYER REFERRAL	DISABILITY RIGHTS (FREE)	LEGAL AID	STATE EDUCATION AGENCY
Alabama	Alabama State Bar Lawyer Referral Service (334) 269-1515	Alabama Disabilities Advocacy Program (ADAP) 800-826-1675	AlabamaLegalHelp.org (Legal Services Alabama) 1-866-456-4995	Alabama State Department of Education, special education dispute resolution
Arkansas	Arkansas Bar Association Find a Lawyer directory (no referral service)	Disability Rights Arkansas (800) 482-1174	Legal Aid of Arkansas 1-800-952-9243	Arkansas Division of Elementary and Secondary Education, state complaints 501-682-4291
Arizona	Maricopa County Bar Association Lawyer Referral Service (the State Bar runs none) (602) 257-4434	Disability Rights Arizona 1-800-927-2260	AZLawHelp.org 866-637-5341	Not found
Florida	The Florida Bar Lawyer Referral Service 800-342-8011	Disability Rights Florida 800-342-0823	Florida Law Help	Florida Department of Education, dispute resolution
Georgia	State Bar of Georgia Find a Lawyer (lists local referral services)	Georgia Advocacy Office 800-537-2329	Georgia Legal Services Program 1-833-457-7529	Georgia Department of Education, dispute resolution
Indiana	Indiana courts: Getting Legal Help (links the State Bar directory)	Indiana Disability Rights 800-622-4845	Indiana Legal Services 1-844-243-8570	Indiana Department of Education, dispute resolution
Kansas	Kansas Bar Association Lawyer Referral Service 785-861-8826	Disability Rights Center of Kansas 1-877-776-1541	Kansas Legal Services 316-267-3975	Kansas State Department of Education, dispute resolution
Kentucky	Kentucky Bar Association: local lawyer referral services	Kentucky Protection and Advocacy 1-800-372-2988	Kentucky Justice Online	Kentucky Department of Education, dispute resolution

STATE	LAWYER REFERRAL	DISABILITY RIGHTS (FREE)	LEGAL AID	STATE EDUCATION AGENCY
Louisiana	Louisiana State Bar Association: Find Legal Help	Disability Rights Louisiana 1-800-960-7705	Southeast Louisiana Legal Services (statewide line) 1-844-244-7871	Louisiana Department of Education, dispute resolution
Missouri	The Missouri Bar LawyerSearch directory	Missouri Protection and Advocacy Services 1-800-392-8667	Legal Services of Missouri (four regional programs)	Missouri DESE, child complaint and due process
Mississippi	The Mississippi Bar Find a Lawyer directory (the Bar runs no referral service)	Disability Rights Mississippi 1-800-772-4057	MSLegalServices.org	Mississippi Department of Education, dispute resolution
North Carolina	North Carolina Bar Association Lawyer Referral Service 919-677-8574	Disability Rights North Carolina 1-877-235-4210	Legal Aid of North Carolina 1-866-219-5262	NC Department of Public Instruction, dispute resolution
Oklahoma	Oklahoma Bar Association Find a Lawyer directory	Disability Rights Oklahoma 800-880-7755	Legal Aid Services of Oklahoma 1-888-534-5243	Oklahoma State Department of Education, dispute resolution
South Carolina	South Carolina Bar Lawyer Referral Service (803) 799-7100	Disability Rights South Carolina 1-866-275-7273	South Carolina Legal Services 1-888-346-5592	SC Department of Education, dispute resolution
Tennessee	Tennessee Bar Association Find an Attorney (lists city bar referral services)	Disability Rights Tennessee 1-800-342-1660	Help4TN (Tennessee Alliance for Legal Services)	Tennessee Department of Education, dispute resolution (615) 741-2921
Texas	State Bar of Texas Lawyer Referral and Information Service (800) 252-9690	Disability Rights Texas 1-800-252-9108	TexasLawHelp.org (Texas Legal Services Center)	Texas Education Agency, complaints
Wyoming	Wyoming State Bar Lawyer Referral Service and Modest Means Program 307-632-9061	Protection and Advocacy System, Inc. (Wyoming) (307) 632-3496	Legal Aid of Wyoming 1-877-432-9955	Wyoming Department of Education, dispute resolution

What a lawful paddling looks like in court

Families should not expect what the law will not give, so here is the case that shows the shape of it.

In 2023 a principal in Overton, Texas paddled a student hard enough to leave bruising. The mother was present and had consented. A child abuse physician described the bruising as consistent with abuse. The principal was charged with assault. In October 2023 a Rusk County judge dismissed the charge, because the district's policy had been followed and the mother had consented. Two months of investigation and news coverage ended with no finding against anyone.

Read it the way a court would. The bruises were not the question. The questions were whether the policy allowed it, whether the policy was followed, and whether the parent had agreed. In Texas, as in the other states in the table, those three answers decide the case, and the statute says the employee may not even be disciplined by the district for force the law calls justified. That is why this guide spends so many words on the records, the consent form and the witness: they are the facts that decide whether your case is this case or a different one.

Turn the incident into a policy change

The one outcome that is in reach for every family, in every state, is that the board stops. Boards are elected, their meetings are public, and the policy that allowed the paddling can be replaced at the next two meetings. Ask for it.

- Bring the board brief for your state and the model policy from the Safe Discipline Program kit. The model policy is written so a district's attorney can adopt it with the district's own numbering, and the kit includes the letters to staff and families and the training that replaces the paddle.
- Find your district's current written policy on its state page, quoted and linked, so no one at the meeting can say the policy is not what it is.
- Ask the board one question in public: has the district's insurer been told that corporal punishment is in use, and is it a rated exposure? Then ask for the answer in writing.
- Show the board the film, four minutes, made for exactly this meeting.
- When the board votes to stop, the district is recognized as a Safe School, with a certificate and a press release it can use. Write to anthony@175g.com and it will be arranged.

This is general information, not legal advice. Statutes, deadlines and court rules change, and the facts of your child's case decide everything. Talk to a lawyer licensed in your state. The statute and deadline citations above were read at each state's own statute website on the date shown at the bottom of this page; if one has changed, tell us and it will be fixed.